

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ FOR PROPOSAL (RFP)
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED					
29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED	

Solicitation/Contract Form Continuation

Newport News Transportation

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Base Year- Sailor Transportation IAW PWS Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 1001	OY 1- Sailor Transportation IAW PWS Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 2001	OY 2- Sailor Transportation IAW PWS Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 3001	OY 3- Sailor Transportation IAW PWS Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 4001	OY 4- Sailor Transportation IAW PWS Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 5001	-8 option- Sailor Transportation IAW PWS Pricing Arrangement: Firm Fixed Price	1	Lot		

Continuation of Description

Requirements

Sailor Transportation IAW PWS

Continuation of Packaging and Marking

Continuation of Inspection and Acceptance

Continuation of Deliveries or Performance

Overall Contract Delivery Period

Contractor

Destination

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Period From 30 Aug 2026 to 29 Aug 2027 Period of Performance From 30 Aug 2026 To 29 Aug 2027	1 Lot	Place of Performance DoDAAC: N00024 CountryCode: USA NAVSEA HQ 1333 ISAAC HULL AVE SE, WASHINGTON NAVY YARD DC 20376-5000 WASHINGTON NAVY YARD, DC 20376-5000 UNITED STATES Robert Williams, Newport News Email: robert.e.williams4.ctr@us.navy.mil Telephone: (571) 882-3414
Option Line Item 1001	Delivery Period From 30 Aug 2027 to 29 Aug 2028 Period of Performance From 30 Aug 2027 To 29 Aug 2028	1 Lot	Place of Performance DoDAAC: N00024 CountryCode: USA NAVSEA HQ 1333 ISAAC HULL AVE SE, WASHINGTON NAVY YARD DC 20376-5000 WASHINGTON NAVY YARD, DC 20376-5000 UNITED STATES Robert Williams, Newport News Email: robert.e.williams4.ctr@us.navy.mil Telephone: (571) 882-3414
Option Line Item 2001	Delivery Period From 30 Aug 2028 to 29 Aug 2029	1 Lot	Place of Performance DoDAAC: N00024 CountryCode: USA NAVSEA HQ 1333 ISAAC HULL AVE SE, WASHINGTON NAVY YARD DC 20376-5000 WASHINGTON NAVY YARD, DC 20376-5000 UNITED STATES Robert Williams, Newport News

	Period of Performance From 30 Aug 2028 To 29 Aug 2029		Email: robert.e.williams4.ctr@us.navy.mil Telephone: (571) 882-3414
Option Line Item 3001	Delivery Period From 30 Aug 2029 to 29 Aug 2030 Period of Performance From 30 Aug 2029 To 29 Aug 2030	1 Lot	Place of Performance DoDAAC: N00024 CountryCode: USA NAVSEA HQ 1333 ISAAC HULL AVE SE, WASHINGTON NAVY YARD DC 20376-5000 WASHINGTON NAVY YARD, DC 20376-5000 UNITED STATES Robert Williams, Newport News Email: robert.e.williams4.ctr@us.navy.mil Telephone: (571) 882-3414
Option Line Item 4001	Delivery Period From 30 Aug 2030 to 29 Aug 2031 Period of Performance From 30 Aug 2030 To 29 Aug 2031	1 Lot	Place of Performance DoDAAC: N00024 CountryCode: USA NAVSEA HQ 1333 ISAAC HULL AVE SE, WASHINGTON NAVY YARD DC 20376-5000 WASHINGTON NAVY YARD, DC 20376-5000 UNITED STATES Robert Williams, Newport News Email: robert.e.williams4.ctr@us.navy.mil Telephone: (571) 882-3414
Option Line Item 5001	Delivery Period From 30 Aug 2031 to 29 Feb 2032 Period of Performance From 30 Aug 2031 To 29 Feb 2032	1 Lot	Ship To DoDAAC: N00024 CountryCode: USA NAVSEA HQ 1333 ISAAC HULL AVE SE, WASHINGTON NAVY YARD DC 20376-5000 WASHINGTON NAVY YARD, DC 20376-5000 UNITED STATES Robert Williams, Newport News Email: robert.e.williams4.ctr@us.navy.mil Telephone: (571) 882-3414



Continuation of Accounting and Appropriation Data

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.222-41	Service Contract Labor Standards.	Aug 2018		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services.	Nov 2023		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		

FAR Clauses Incorporated by Full Text

52.222-42 Statement of Equivalent Rates for Federal Hires. (May 2014)

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5 332.

This Statement is for Information Only: It is not a Wage Determination

Title	Schedule	Hourly Rate	Fringe
Bus Driver	GS 8 Step 9	\$26.25	\$8.08

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(End of clause)

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

As prescribed in 232.7004(b), use the following clause:

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

TO BE FILLED IN AT TIME OF AWARD

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

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<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	=====
Issue By DoDAAC	=====
Admin DoDAAC	=====
Inspect By DoDAAC	=====
Ship To Code	=====
Ship From Code	=====
Mark For Code	=====
Service Approver (DoDAAC)	=====
Service Acceptor (DoDAAC)	=====
Accept at Other DoDAAC	=====
LPO DoDAAC	=====
DCAA Auditor DoDAAC	=====
Other DoDAAC(s)	=====

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

*(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)*

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts.	May 2024		
52.242-13	Bankruptcy.	Jul 1995		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.247-34	F.o.b. Destination.	Jan 1991		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)	Feb 2024	Deviation 2024-O0006	Feb 2024

FAR Clauses Incorporated by Full Text

52.252-2 **Clauses Incorporated by Reference.** **(Feb 1998)**

As prescribed in 52.107(b), insert the following clause:

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of clause)

52.252-6 **Authorized Deviations in Clauses.** **(Nov 2020)**

As prescribed in 52.107(f), insert the following clause in solicitations and contracts that include any FAR or supplemental clause with an authorized deviation. Whenever any FAR or supplemental clause is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the clause when it is used without deviation, include regulation name for any supplemental clause, except that the contracting officer shall insert "(DEVIATION)" after the date of the clause.

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DFARS (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

As prescribed in 17.208(g), insert a clause substantially the same as the following:

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 1 day; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 1 day before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months.

(End of clause)

52.217-8 Option to Extend Services.

(Nov 1999)

As prescribed in 17.208(f), insert a clause substantially the same as the following:

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 1 day.

(End of clause)

52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004)

(Oct 2025) Deviation 2025-O0004 (Mar 2025)

Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services (MAR 2025) (DEVIATION 2025-O0003 and 2025-O0004)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☒ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

☐ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115-390, title II).

☐ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (Dec 2023) of 52.204-30.

☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).

☐ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

☐ (14) [Reserved].

☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☐ (18)

☒ (i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (Mar 2020) of 52.219-6.

☐ (19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (Mar 2020) of 52.219-7.

☒ (20) 52.219-8, Utilization of Small Business Concerns (Jan 2025)(15 U.S.C. 637(d)(2) and (3)).

☐ (21)

(i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (Nov 2016) of 52.219-9.

☐ (iii) Alternate II (Nov 2016) of 52.219-9.

☐ (iv) Alternate III (Jun 2020) of 52.219-9.

☐ (v) Alternate IV (Jan 2025) of 52.219-9.

- ☐ (22)
- ☐ (i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).
- ☐ (ii) Alternate I (Mar 2020) of 52.219-13.
- ☐ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).
- ☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).
- ☐ (26)
- ☒ (i) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).
- ☐ (ii) Alternate I (Mar 2020) of 52.219-28.
- ☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).
- ☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).
- ☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).
- ☐ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).
- ☒ (31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).
- ☐ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025)(E.O. 13126).
- ☐ (33) [Reserved]
- ☐ (34) [Reserved]
- ☐ (35)
- ☐ (i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).
- ☐ (ii) Alternate I (Jul 2014) of 52.222-35.
- ☐ (36)
- ☒ (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).
- ☐ (ii) Alternate I (Jul 2014) of 52.222-36.
- ☐ (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).
- ☐ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).
- ☐ (39)
- ☒ (i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)
- ☐ (41)
- ☐ (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, *et seq.*).

- ☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004)) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).
- ☐ (47)
- ☒ (i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).
- ☐ (ii) Alternate I (Jan 2017) of 52.224-3.
- ☐ (48)
- ☒ (i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).
- ☐ (ii) Alternate I (Oct 2022) of 52.225-1.
- ☐ (49)
- ☒ (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ☐ (ii) Alternate I [Reserved].
- ☐ (iii) Alternate II (Jan 2025) of 52.225-3.
- ☐ (iv) Alternate III (Feb 2024) of 52.225-3.
- ☐ (v) Alternate IV (Oct 2022) of 52.225-3.
- ☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).
- ☒ (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).
- ☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).
- ☐ (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).
- ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☒ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct2018) (31 U.S.C. 3332).
- ☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ☐ (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).
- ☐ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).
- ☒ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).
- ☐ (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).
- ☐ (65)

(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (Apr 2003) of 52.247-64.

☐ (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

☒ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☒ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☒ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

☒ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

☒ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118 (g)).

(d) *Comptroller General Examination of Record.* The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi)

☒ (A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.232-7007 Limitation of Government's Obligation.

(Apr 2014)

LIMITATION OF GOVERNMENT'S OBLIGATION (APR 2014)

(a) Contract line item(s) [Contracting Officer insert after negotiations] is/are incrementally funded. For this/these item(s), the sum of \$ [Contracting Officer insert after negotiations] of the total price is presently available for payment and allotted to this contract. An allotment schedule is set forth in paragraph (j) of this clause.

(b) For item(s) identified in paragraph (a) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement in the event of termination of those item(s) for the Government's convenience, approximates the total amount currently allotted to the contract. The Contractor is not authorized to continue work on those item(s) beyond that point. The Government will not be obligated in any event to reimburse the Contractor in excess of the amount allotted to the contract for those item(s) regardless of anything to the contrary in the clause entitled "Termination for Convenience of the Government." As used in this clause, the total amount payable by the Government in the event of termination of applicable contract line item(s) for convenience includes costs, profit, and estimated termination settlement costs for those item(s).

(c) Notwithstanding the dates specified in the allotment schedule in paragraph (j) of this clause, the Contractor will notify the Contracting Officer in writing at least ninety days prior to the date when, in the Contractor's best judgment, the work will reach the point at which the total amount payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then allotted to the contract for performance of the applicable item(s). The notification will state (1) the estimated date when that point will be reached and (2) an estimate of additional funding, if any, needed to continue performance of applicable line items up to the next scheduled date for allotment of funds identified in paragraph (j) of this clause, or to a mutually agreed upon substitute date. The notification will also advise the Contracting Officer of the estimated amount of additional funds that will be required for the timely performance of the item(s) funded pursuant to this clause, for a subsequent period as may be specified in the allotment schedule in paragraph (j) of this clause or otherwise agreed to by the parties. If after such notification additional funds are not allotted by the date identified in the Contractor's notification, or by an agreed substitute date, the Contracting Officer will terminate any item(s) for which additional funds have not been allotted, pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the contract line item(s) identified in paragraph (a) of this clause, the parties will agree as to the period of contract performance which will be covered by the funds. The provisions of paragraphs (b) through (d) of this clause will apply in like manner to the additional allotted funds and agreed substitute date, and the contract will be modified accordingly.

(e) If, solely by reason of failure of the Government to allot additional funds, by the dates indicated below, in amounts sufficient for timely performance of the contract line item(s) identified in paragraph (a) of this clause, the Contractor incurs additional costs or is delayed in the performance of the work under this contract and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the item(s), or in the time of delivery, or both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the clause entitled "Disputes."

(f) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a) of this clause.

(g) The termination provisions of this clause do not limit the rights of the Government under the clause entitled "Default." The provisions of this clause are limited to the work and allotment of funds for the contract line item(s) set forth in paragraph (a) of this clause. This clause no longer applies once the contract is fully funded except with regard to the rights or obligations of the parties concerning equitable adjustments negotiated under paragraphs (d) and (e) of this clause.

(h) Nothing in this clause affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(i) Nothing in this clause shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

(j) The parties contemplate that the Government will allot funds to this contract in accordance with the following schedule:

On execution of contract	\$ <u> </u>
(month) (day), (year) <u> </u>	\$ <u> </u>
(month) (day), (year) <u> </u>	\$ <u> </u>
(month) (day), (year) <u> </u>	\$ <u> </u>

(End of clause)

List of Contract Documents, Exhibits, or Attachments

Performance Work Statement

Newport News NEWCON/ RCOH Transportation Initiative

1. Description of Services / Introduction

On behalf of Program Executive Office Aircraft Carriers (PEO CV), it has been approved to contract vehicles with drivers to transport Sailors for Ships within NN HII yards until further notice.

2. Purpose

The Contractor shall perform the following work: Transport personnel to and from specified destinations laid out in this contract.

3. Specific Task Explanation

1. Transport approximately 400 Sailors within the local Newport News area from Government Leased Apartments (GLAs) to 50th Street turnstile. The list of current GLAs are provided below. GLA locations are subject to change and may increase to up to ten(10) total locations during this period of performance.
 - Impressions Apartments
 - Forest Lakes Apartments
 - Huntington Hall Barracks
 - Abbingdon Apartments
2. Transport Sailors from GLAs to 35th Street turnstile:
 - Lakeshore at Hampton Center Apartments
 - Monticello at Town Center Apartments
 - The Lakes at Town Center Apartments
 - NGIS Dale Tower East NNSY Portsmouth
3. Transport Sailors from 50th Street turnstile to government housing in Task 1.
4. Transport Sailors from 35th Street turnstile to government housing in Task 2.
5. Transport Sailors between 37th Street Parking Garage, 50th Street turnstile, Huntington Hall, and Bank Building.
6. All Sailor totals listed above are approximate.
7. Contractor shall provide transportation such as 15-passenger vans and/or charter/shuttle buses that can transport up to 40 personnel at a time.
8. Contractor is responsible for all Fuel, EZ-Pass for Tolls, and Parking fees for the execution of this contract.
9. The vendor shall be responsible for ensuring that the vendor inspects each bus before and after trips. The Government shall not consider any claim for damage to a bus which has not been inspected.

4. Personnel and Specific Skill Sets Required

4.1 All vehicle drivers must be qualified and licensed to operate contracted vehicles in the Commonwealth of Virginia.

4.2 No individual driver shall be required to drive more than twelve (12) hours straight or more than local labor laws restrict, whichever is lower. Drivers must not have been on-duty within the previous twelve (12) hours or less than local labor laws restrict, whichever is lower.

4.3 The vendor shall provide climate-controlled transportation vehicle(s) (i.e. buses and/or vans) inclusive of a driver(s) or operator(s), any additional helpers or crew required by local authorities, all insurance, fuel, holiday surcharges, overtime, parking fees and all other operating expenses.

4.4 The vendor shall ensure that the transportation vehicle(s) is in sound mechanical condition and meets all safety standards required by local laws and regulations. Further, the bus shall be in a clean condition so as not to soil passengers, their clothing or possessions with dirt, grease, oil, or other matter and shall be free of debris.

4.5 Any personal articles or items found on the bus after completion of each trip shall be turned over to the GTPOC.

5. Vehicle Maintenance

5.1 The vendor shall furnish air-conditioned vehicles not more than five (5) years old, in good order and condition and otherwise in full compliance with best commercial practices and local laws and regulations. They shall be equipped with front and back seat belts, an emergency triangle, spare

tire, jack and complete set of tools for changing a flat tire, as well as any other equipment required by local authorities. Upon initial rental, the gasoline tank shall be full.

5.2 The vendor shall provide vehicles that have been properly maintained and serviced, including all motor oils lubricants, antifreeze, coolants and other fluids such as windshield washer fluid, and shall be responsible for all emergency repairs and services.

5.3 Should any vehicle break down while in the Government's possession, the vendor shall replace it with another vehicle of the same or larger size as quickly as possible, but in any case, no more than two (2) hours after the breakdown is reported. The replacement shall take place either at the point of breakdown or at the vendor's office closest to that point; whichever is more convenient for the Government. All repair or replacement costs, including transportation, shall be at the vendor's expense. In addition, the vendor shall be liable for any Government incurred costs because of the breakdown; such as towing, repair costs, and related transportation expenses because the vendor was unreachable.

5.4 The vendor shall obtain written acknowledgement of vehicle service by an authorized Government representative. The Government shall not be liable for loss or damage to rented vehicles in any amount regardless of the cost, except where the loss or damage is caused by the willful and wanton misconduct of the Government employee.

5.6 Insurance and Liability. The prices for vehicle rental services, as set forth in the schedule, shall be subject to the conditions below:

5.6.1 The Government shall not be liable for loss or damage to rented vehicles in any amount regardless of the cause, except where the loss or damage is caused by the willful and wanton misconduct of the Government employee.

5.6.2 The vendor and any Subcontractor shall be liable for, and shall indemnify and hold harmless, Government, its agents, and its employees against all actions or claims for loss of or damage to property or the injury or death of persons, resulting from the fault, negligence, or wrongful act or omission of the vendor, its subcontractors, its agents, or employees.

5.6.3 The vendor shall provide and maintain at its expense, all vehicle operator's insurance required by the law of the country in which the vehicle is to be operated. All necessary insurance certificates shall be provided with the rental vehicle. Such insurance shall include all coverage required by law for bodily injury, collision, and property damage liability. The vendor shall be liable for, and shall indemnify and hold harmless the Government, its agents, and its employees, against all actions or claims for loss of or damage to property or the injury or death of persons, within the required policy limits, arising out of or in connection with the rental or use by the Government, its agents or its employees of any vehicle under this contract.

5.6.4 Paragraph 5.6.3 shall not be construed as limiting the vendor's liability to the amounts of the required minimum insurance coverage specified therein.

5.7 The vendor shall provide vehicles that have been properly maintained and serviced. If a vehicle does not meet the requirements of this contract as determined by the KO, the Government shall have the right to reject the vehicle for performance of services.

5.8 Traffic Violations and Fines. Each vehicle operator shall be responsible for payment of fines and legal costs incurred as a consequence of the violations of traffic laws or regulations. The vendor shall notify the Government of the infraction and amount cited as soon as the documentation concerning the violation is received by a Government employee.

6. Deliverables

Contractor shall transport Sailors safely to associated locations with the tasks listed above, including but not limited to 50th Street turnstile, 35th Street turnstile, 37th Street Parking Garage, GLAs, Huntington Hall, and Bank Building. The contractor is required to provide the following deliverables under this contract:

No.	Description	Performance Threshold	Method of Surveillance	Addressees	Due Date
1.	Documentation and receipts supporting completion of all work action items.	100% compliance with USN Standards	Technical Inspection	Point of Contact (TPOC)	Ongoing evolution

2.	Provide sufficient transportation to ensure earliest departing Sailors arrive at 35th / 50th turnstile by 0600. Allocate transportation capacity to account for morning inbound workforce.	100% compliance with USN Standards	Technical Inspection	Point of Contact (TPOC)	Ongoing evolution							
3.	Hourly transportation between locations throughout day for straggler Sailors.	100% compliance with USN Standards	Technical Inspection	Point of Contact (TPOC)	Ongoing evolution							
4.	Provide sufficient transportation to account for afternoon outbound workforce, with last departure to be at 1700 from 35th / 50th turnstiles to residences	100% compliance with USN Standards	Technical Inspection	Point of Contact (TPOC)	Ongoing evolution							
5.	Provide round robin services between 37th Street Parking Garage, 50th Street turnstile, Huntington Hall, and Bank Building. Most Sailor traffic in the morning and afternoon.	100% compliance with USN Standards	Technical Inspection	Point of Contact (TPOC)	Ongoing evolution							

6. Personnel Security Requirements

Contractor personnel performing under this task order will be U.S. Citizens and **ARE NOT** required to obtain or retain a security clearance. Work under this task order is classified as:

- UNCLASSIFIED

7. Hours of Operations

Contractor is to perform the required services during normal hours of operation:

- Monday-Friday: 0500-1730
- Saturday, Sunday, Holidays: 0500-0900 (arriving at turnstiles at 0600, departing for residences at 0900)

- No more than 100 sailors are expected to require transportation during these days
- No transportation required outside the hours above

8. Government Furnished Property, Material, and Services

The Contractor will not be provided a designated workspace or associated support equipment.

9. Place of Performance

The required services will be performed entirely on designated routes and will not deviate unless otherwise requested 14 days in advance.

11. Period of Performance

Base: August 30, 2026 - August 29, 2027

Option 1: August 30, 2027 - August 29, 2028

Option 2: August 30, 2028 - August 29, 2029

Option 3: August 30, 2029 - August 29, 2030

Option 4: August 30, 2030 - August 29, 2031

FAR clause 52.217-8: August 30, 2031 - February 29, 2032

12. Other Requirements

The contractor shall be responsible for transportation safety. Contractor may be given additional tasking for future evolutions (e.g., movement of approximately 200 personnel to specific venues) with a minimum of 14 days' notice in advance, approved by NAVSUP/SUPSHIP.

13. Invoicing

All invoices should be coordinated with the contract TPOC prior to submission.
Invoices should be uploaded into the Wide Area Workflow system and one copy emailed to the TPOC.

14. Addresses

Location	Address
Impressions Apartments	501 Coral Key Pl, Newport News, VA 23606
Forest Lakes Apartments	307 Saint Thomas Dr, Newport News, VA 23606
Huntington Hall Barracks	3100 Huntington Ave, Newport News, VA 23607
Abbingdon Apartments	961 Marcus Dr, Newport News, VA 23602
Lakeshore at Hampton Center Apartments	70 Lakeshore Dr, Hampton, VA 23666

Monticello at Town Center Apartments	100 Monticello Mews, Hampton, VA 23666
The Lakes at Town Center Apartments	900 Lakeridge Rd, Hampton, VA 23666
NGIS Dale Tower East NNSY Portsmouth	1579 Andrew St, Norfolk Naval Shipyard, Portsmouth, VA 23709

15. Points of Contact

Task Manager / Technical Point of Contact (TPOC)

NAVSUP FLC Norfolk / SUPSHIPNN
4101 Washington Ave, Bldg. 2
Newport News, VA 23607

CDR Tyler Ordway, SC, USN

Dept Head, SUPSHIP Newport News Code 500
Integrated Logistics Support Director
tyler.s.ordway.mil@us.navy.mil
757-688-0906

Judith D. Burkett

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LSC Hailey Rodamaker

NAVSUP FLC Norfolk, Code 500
SUPSHIPNN LCPO
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757-380-3207

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	CONTRACT ADMINISTRATION PLAN			11 Feb 2026

02	QASP			11 Feb 2026
03	NN Vehicles Statement of Work PEO CV	Performance Work Statement		11 Feb 2026
09	Newport News Wage determination (1)	Wage Determination		11 Feb 2026
10	Synopsis- Sailor Transportation			02 Mar 2026

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	May 2021		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Oct 2025		

FAR Clauses Incorporated by Full Text

52.209-7 Information Regarding Responsibility Matters. (Oct 2018)

INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in-
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.212-1 Instructions to Offerors-Commercial Products and Commercial Services. (Tailored) (Sep 2023)

As prescribed in 12.301(b)(1), insert the following provision:

Instructions to Offerors-Commercial Products and Commercial Services (Sep 2023)

SEE ADDENDUM

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

ADDENDUM FAR 52.212-1, INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS:

The Government intends to award a single contract with Firm Fixed-Price (FFP) provisions as a result of this solicitation in accordance with FAR Part 12, and FAR Part 15. Award will be made to that vendor whose proposal represents the best value to the Government under the selection criteria set forth in this solicitation. The Government intends to evaluate proposals and make an award based on initial proposals. Therefore, the vendor's initial proposal should contain the vendor's best terms from a Technical, Past Performance, and Price standpoint. The Government reserves the right to award a FFP contract to other than the lowest priced vendor; award a FFP contract without discussions; or award a FFP contract after discussions, whichever is in the best interest of the Government.

The Government intends to award a single FFP contract to the responsible vendor whose proposal represents the best value after evaluation in accordance with the factors in the solicitation. The vendor's proposal shall be in the form prescribed by, and shall contain a response to each of the areas identified in ADDENDUM FAR 52.212-1, INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS.

QUESTIONS: Vendors may submit questions regarding clarification of solicitation requirements to Jim Keegan and Samantha Ballance via email at james.p.keegan7.civ.@us.navy.mil and samantha.a.ballance.civ@us.navy.mil. It is requested that all questions be received by 30 March 2026 by 1300 Eastern Time, as time may not permit responses to questions received after that date to be prepared and issued prior to receipt of proposals.

SUBMISSION OF PROPOSALS:

(1) Proposals shall be submitted electronically no later than the due date of the solicitation to Jim Keegan and Samantha Ballance via email at james.p.keegan7.civ.@us.navy.mil and

samantha.a.ballance.civ@us.navy.mil. Vendors shall comply with the detailed instructions for the format and content of the proposals contained herein; proposals that do not comply may be considered unacceptable and may render the proposal ineligible for award. All electronic files and versions of vendors proposals shall be compatible with the current release of Adobe Acrobat and Microsoft Office Suite version 2016. The vendor shall be responsible for ensuring that their electronic proposals are virus free.

(2) Volumes I & II - Non-Price Proposal

These volumes shall address Technical Approach and Past Performance and include all information required for proposal evaluation. This volume of the proposal shall exclude any pricing information. Proposals shall include the following legend on each page:

Source Selection Information

See FAR 2.101 and FAR 3.104

(3) Volume III - Price Proposal

This volume shall include the completed solicitation documents and a complete and detailed price breakdown with all supporting information. Each page of each copy shall be affixed with the following legend:

Source Selection Information

See FAR 2.101 and FAR 3.104

REQUIREMENTS FOR PROPOSAL CONTENT

The offer should contain the following items in addition to other information required by this solicitation. The cover page should indicate the following:

Title of the proposal

Volume Number (I, II, III)

Proposal Category (Factor/Sub-factor)

Request for Proposal Number

Name and Address of Vendor, CAGE Code, EUI number, and applicable Tax I.D. Number (TIN)

Point of Contact name, telephone number, and email address

Proposal valid for 180 days

Proposals shall be prepared in three (3) separate and distinct volumes:

Volume I - Factor I: Technical Approach

Volume II - Factor II: Past Performance

Volume III - Factor III: Price

Table of Contents: The table of contents should provide sufficient detail as to allow the important elements to be easily located.

1. Requirements for Style: Each vendor shall submit a proposal that clearly and concisely describes and defines the contractor's response to the requirements contained in the RFQ. Unnecessary elaboration or other presentations beyond that sufficient to present a complete and effective proposal are not desired and may be construed as an indication of the vendor's lack of understanding of cost consciousness. The proposal shall contain all the pertinent information in sufficient detail in the one area of the proposal where it contributes most critically to the discussion of the same information. When necessary, the vendor shall refer to the initial discussion and identify its location within the submitted proposal.

2. Proposal Page Limitations

Volumes I and II Non-Price Proposal - The following page limitations are established:

Title	Proposal Quantities	Page Limit*
Factor I, Technical	1 Electronic Submission	12 Pages
Factor II, Past Performance	I Electronic Submission	12 Pages

All submission and attachments shall be in Microsoft Office Suite. Submissions are page limited to the maximum number of pages as defined above. These page limitations are inclusive of the executive summary and any charts, diagrams, and/or other graphics. Graphics (including tables) in the proposal may use an alternative font with 8-point size type or larger. Each "page" is defined as one sheet, 8 1/2 "x 11", with at least one inch margins on all sides, using a font with a font size of 12 or greater (e.g., "Times New Roman" style with 12-point font), and shall be in portrait orientation. Lines shall, at a minimum, be selected as single-spaced in Microsoft Word with Microsoft Word Normal character spacing. Pages shall be consecutively numbered. Multiple pages, double pages, two-sided pages, or foldouts will count as an equivalent number of 8 1/2" x 11" pages. The vendor is permitted to submit no more than one page for each of the following, which will not be included in the page count: a cover sheet, list of tables, list of figures, compliance matrix, table of contents, tabs, and dividers.

Volume III - Price proposal - is not page limited

Title	Proposal Quantities	Page Limit	Software
Factor III, Price	1 Electronic Submission	12 Pages	Microsoft Excel

The Price Proposal is not page limited; however, the Price proposal is to be strictly limited to price information and completed solicitation documents as described in the General Section at the beginning of this text.

* Page limits represent the maximum pages the Government will evaluate and are not construed as de facto standards for the amount of material expected in the proposal. Pages submitted in excess of the page limitations described within will not be evaluated.

1. **Volume I-Technical Approach**

Factor I - Technical Approach

Vendor shall provide a technical approach that details how the vendor intends to meet the specific services and requirements identified in the PWS. Vendors shall demonstrate a thorough understanding of, as well as its ability to implement and execute the tasks/requirement, specified within Sections 6 and 7 of the PWS.

NOTE: Vendors simply providing general statements or paraphrasing/parroting the PWS in whole or in any part may result in a rating of unacceptable.

2. **Volume II - Past Performance Proposal**

Factor II - Past Performance

To demonstrate its past performance, the vendor shall identify up to three (3) of its most relevant contracts performed within five (5) years of the solicitation issuance date. Those contracts must reflect at least one year of completed performance within the five years prior to the closing date of this solicitation. Vendors shall provide a detailed explanation demonstrating the relevance of the contracts to the requirements of the solicitation.

For purposes of this solicitation, a contract is defined as a single contract or a single task order placed under an ID/IQ contract, a Blanket Purchase Agreement (BPA), or a Federal Supply Schedule. Vendors shall not submit the IDIQ contract, FSS contract, or BPA itself as a reference. Vendors may submit a combination of no more than three (3) delivery orders (DOs), task orders (TOs), technical direction letters (TDLs), and/or technical area tasks (TATs) placed under an IDIQ or BPA as one of the three examples of past performance. Such a combination must also meet the requirements stated above: each individual example in the combination must have been performed within five (5) years of the solicitation issuance date and demonstrate at least one year of completed performance prior to the closing date of this solicitation. If a combination of DOs, TOs, TDLs and or TATs are used as a past performance example, the vendor shall state the specific experience claimed, period of performance, and dollar value of each. A Past Performance example that does not provide the level of detail required may not be evaluated. No more than one combination of DOs, TOs, TDLs and or TATs is permitted in the past performance submittal.

If a proposed subcontractor's past performance is provided as part of the three (3) of its most relevant contracts or efforts, the percentage and type of work to be done by the subcontractor on the solicitation requirement must be stated. The vendor's submittal shall also detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform. A Past Performance example which does not detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform may not be evaluated.

If the prime vendor or intended subcontractor/partner submits a past performance example in which it served as a subcontractor, the prime/sub/partner shall detail clearly the work that it performed and the magnitude (dollar value) of that subcontracted work only. A Past Performance example that does not differentiate between the overall contract effort and the subcontractor effort may not be evaluated.

The past performance of subcontractors who will be performing major or critical aspects of the solicitation will be considered as highly as a prime contractor's past performance.

Failure of vendors to provide the required information and level of specificity may result in the contract reference not being evaluated.

With respect to joint ventures, the procuring activity will consider work done individually by each member of the joint venture as well as any work done by the joint venture itself previously. Joint venture references must meet the temporal requirements described in ADDENDUM FAR 52.212-1, INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS (within five years and must reflect at least one year of completed performance prior to the closing date of this solicitation). Additionally, if a joint venture member submits a past performance reference, the joint venture member shall detail clearly the work that it performed in that effort and the magnitude (dollar value) of that work. A reference that does not differentiate between the overall contract effort and the joint venture member's effort for that reference will may not be evaluated. The past performance of a joint venture member who will be performing major or critical aspects of the solicitation will be considered as highly as the joint venture's past performance.

The vendor shall complete a "Past Performance Information Form" for each reference submitted. The form is an attachment to the solicitation.

In addition to the information requested above, vendors shall contact their past performance references and request that each reference complete the Past Performance Report Form attached to the solicitation and e-mail the completed survey form directly to James Keegan and Samantha Ballance via email to james.p.keegan7.civ@us.navy.mil and samantha.a.ballance.civ@us.navy.mil by the DUE DATE OF THIS SOLICITATION. The Government reserves the right to consider past performance report forms

received after the due date of the solicitation and to contact references for verification or additional information.

3. **Volume III - Price Proposal**

Factor III - Price

The Price Proposal shall include the completed solicitation documents. The price proposal shall include all elements of price, and other price information considered appropriate to support the proposal. The pricing information shall be completed in accordance with the following:

Completed Section B "Schedule of Supplies/Services" completed by the vendor.

Completed Attachment, Pricing Spreadsheet. A vendor must propose on all line items for all ordering periods in this spreadsheet. Failure to do so shall be cause for rejection of the offer. All pricing shall be calculated to the second decimal.

A completed and signed page 1 of the solicitation and a completed and signed page 1 of any

amendments;

Unless completed in SAM, RFP Section, "Representation, Certification and Other Statements of Offerors" completed by the vendor in accordance with FAR 52.204-8, FAR 52.204-24, FAR 52.204-26 and DFARS 252.204-7007 Alt. A.

All price and price supporting information shall be contained in the price submittal. No price or pricing information shall be included in any other volume including cover letters. Vendors are responsible for submitting sufficient information to enable the Government to fully evaluate their price proposal.

Evaluation - Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services.

(Nov 2021)

As prescribed in 12.301(c), the Contracting Officer may insert a provision substantially as follows:

Evaluation-Commercial Products and Commercial Services (Nov 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

SEE ADDENDUM

(b) *Options*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

ADDENDUM FAR 52.212-2, EVALUATION CRITERIA:

The Government intends to award a single contract with Firm Fixed-Price (FFP) provisions as a result of this solicitation in accordance with FAR Part 12, and FAR Part 15. Award will be made to that vendor whose proposal represents the best value to the Government under the selection criteria set forth in this solicitation. The evaluation will consist of Factor I: Technical Approach, Factor II: Past Performance, and Factor III: Price. The evaluation of proposals will consider the Non-Price Proposal to be significantly more important than the Price Proposal. Within the Non-Price Proposal, Factor I - Technical Approach is significantly more important than Factor II - Past Performance.

Vendors simply providing general statements or paraphrasing/parroting the PWS in whole or in any part may result in a rating of unacceptable. Vendors should be aware that a complete understanding as to technical, price, and all terms and conditions of the proposed contract must exist between the vendor and the Government at the conclusion of discussions, if held. Material changes to proposals submitted in any final proposal revisions, if made, may not be subject to further exchange, and may render the proposal unacceptable to the Government. All vendors and team member/subcontractor information must be incorporated into one coherent proposal to be considered complete.

Although price is not the most important evaluation factor, it has the potential to become more significant during the evaluation process. The degree of importance of price will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based. The importance of price will also increase when an vendor's price is so significantly high as to diminish the value to the Government that might be gained under the other aspects of the vendor. If, at any stage of the evaluation, all vendors are determined to have submitted equal, or virtually equal, proposals, price could become the factor in determining which vendor shall receive the award.

All proposals will be reviewed for timeliness. Timely proposals will also be reviewed for compliance to the solicitation. If the proposal is not compliant with the material terms of the solicitation, it may not be evaluated and the vendor will be notified that the proposal is non-responsive.

1. Non-Price Proposal Evaluation Criteria

Factor I: Technical Approach

Vendor's technical approach will be evaluated on how it intends to meet the specific services and requirements identified in the PWS. Vendors shall be evaluated on its feasibility, comprehensiveness, and the degree to which the vendor demonstrates an understanding of, and capability to successfully accomplish the tasks/requirements, to includes those specified within Sections 6 and 7 of the PWS, as well as the additional requirements listed above in the ADDENDUM FAR 52.212-1, INSTRUCTIONS TO OFFERORS.

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The purpose of the technical factor is to assess the vendor's proposed approach to satisfy the Government's requirements. The technical rating reflects the degree to which the proposed approach meets or does not meet the threshold performance or capability requirements. The risk associated with the vendor's technical approach will also be assessed. Risk, as it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which a vendor's proposed approach to achieving the technical factor or sub-factor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

The technical/risk rating includes consideration of risk in conjunction with the significant strengths, strengths, deficiencies, uncertainties, weaknesses, and significant weaknesses in determining technical ratings. Combined technical/risk evaluations will utilize the combined technical/risk ratings listed in the Technical Ratings Table and the risk descriptions in the Risk Descriptions Tables below. The overall assigned technical factor ratings will be from Table 1. Note that a separate and distinct rating for risk will not be assigned. The risk descriptions are provided in the Risk Descriptions Table (Table 2) below in order to define the risk terms that are utilized in the combined technical/risk rating table (Table 1) and to describe the level of risk assessed when establishing the combined technical risk/rating.

Note: A rating of "Marginal" for any Technical factor means that the vendor's proposals is not awardable without a change or changes to the vendor's proposals. A proposal which includes a "Marginal" rating is not eligible for award if award is made on initial offers. Vendors that receive a "Marginal" rating are considered to be susceptible to correction if the Contracting Officer determines that an exchange is appropriate and said exchange is conducted, and as such, a vendor that receives a rating of "Marginal" in the technical factor is not awardable and will not be further evaluated unless discussions are conducted. Vendors receiving a rating of "Unacceptable" for any Technical factor will not be considered for an award and will not be further evaluated.

Factor II: Past Performance

The past performance evaluation factor assesses the degree of confidence the Government has in a vendor's ability to meet the contract's requirements based on the quality of a demonstrated record of recent and relevant performance. There are three aspects to the past performance evaluation: recency, relevancy, and quality. These are combined to establish a single performance confidence assessment rating for each vendor .

Past Performance Recency: Recency is the first aspect of the past performance evaluation and is the time period during which past performance references are considered relevant. Recency is critical to establishing the relevancy of past performance information. For purposes of this solicitation, recent past performance is performance that has taken place within five (5) years of the issuance date of this solicitation. Evaluation will focus only on work experience already performed. Work yet-to-be performed, and work prior to the last five years, will not be considered. In addition, performance data will only be assessed for those references demonstrating at least one year of completed performance prior to the closing date of the solicitation within the past 5 years.

Past Performance Relevancy: Regarding relevancy, each past performance reference under each vendor's Past Performance submission will be evaluated to determine its scope and magnitude relative to the instant requirement as detailed in table 3 below. The following definitions will apply to this evaluation:

Scope: Experience in the areas described in the PWS.

Magnitude: The similarity of the dollar value of actually performed work that exists between the PWS and the vendor's referenced contracts during the stated five-year period established by the solicitation.

The relevancy rating assigned to each past performance reference will be considered in determining the weight to be given to that reference in the overall Past Performance Confidence Assessment. References determined to be "Not Relevant" will not be further considered. Similarly, the quality of performance under a past performance reference that has no relevance to the instant requirement will not be considered in the overall assessment of past performance confidence. In determining the rating for the past performance factor, past performance of greater relevancy will have more influence on the past performance confidence assessment than past performance of lesser relevance.

The aggregate of each vendor's past performance references in terms of scope and magnitude will result in the assessed overall relevance of that vendor's past performance, and will result in a relevancy rating as outlined in Table 3 (Past Performance Relevancy Ratings Table), below.

Past Performance Quality: The third aspect of the past performance evaluation is to establish the overall quality of the vendor's past performance. The Government will review all past performance information collected and determine the quality of the vendor's performance, including general trends and usefulness of the information, and will incorporate this into the performance confidence assessment.

Past Performance Confidence Assessment: The overall assigned rating for past performance will be the Past Performance Confidence Assessment rating, defined in the table 4 below. The assignment of this rating will be based on the overall quality of the recent and relevant past performance and will also consider the source of the information, the context of the data, and general trends in the vendor's performance. The quality of performance under a past performance reference that has no relevance to the instant requirement will not be considered in the overall assessment of past performance confidence. Evaluation will focus only on work already performed. Work yet-to-be performed by the solicitation closing date will not be considered.

If the vendor's aggregated past performance is determined to be not relevant as defined in the solicitation, then the quality of the vendor's past performance will not be evaluated through a confidence assessment and the past performance factor will be rated as "Neutral Confidence." If a vendor's aggregate past performance is determined to be relevant, then each past performance reference under the vendor's past performance submission that contributed to the determination of aggregate relevance (i.e., each reference that is rated at least somewhat relevant) will be evaluated to determine the quality of the vendor's performance under that reference. The quality of performance on contract references that are rated Not Relevant is not evaluated even when the overall past performance is found to be relevant.

In the case of vendors for which there is no information on past contract performance or where past contract performance information is not available, the vendor may not be evaluated favorably or unfavorably on the past performance factor. In this case, the vendor's past performance is unknown and assigned a performance confidence rating of "Neutral Confidence." Although a vendor that lacks recent, relevant past performance may not be rated favorably or unfavorably with regard to past performance, the Government may determine that a "Substantial Confidence" or "Satisfactory Confidence" past performance rating provides better value to the Government than a "Neutral Confidence" past performance rating.

In order to evaluate Past Performance, the Government may also utilize existing data sources, including the Contractor Performance Assessment Reporting System (CPARS), the Federal Awardee Performance and Integrity Information System (FAPIIS), the Electronic Subcontract Reporting System (eSRS), or other databases; communication with points of contact in the vendor's customer's organization, which could include private sector requirements and contracts personnel, Administrative Contracting Officers, Defense Contract Management Agency (DCMA) personnel, Procuring Contracting Officers, Contracting Officer's Representatives, and other Government activity requirements personnel. The Government may verify past performance information. The Government may contact some or all of the references provided, as appropriate, and may collect information through questionnaires, telephone interviews, and existing data sources. The Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources, including sources outside of the Government. This information will be used for the evaluation of past performance.

The past performance factor evaluation and past performance confidence assessment rating is separate and distinct from the Contracting Officer's responsibility determination. The assessment of the vendor's past performance will be used as a means of evaluating the relative capability of the vendor and other competitors to successfully meet the requirements of the RFP. In determining the rating for the past performance evaluation sub-factor, the Government will give greater consideration to the contracts which the Government assess as most relevant to the RFP.

The references will be evaluated in the aggregate in order to allow the vendors who may not have the entire scope and magnitude of the requirement under one individual contract to still be evaluated for quality if past performance with the full scope and magnitude of the requirement can be demonstrated within the allotted number of references as described above.

NOTE: A rating of "Limited Confidence" for past performance factor means that the vendor's proposal is not awardable without a change or changes to the vendor's proposal. A proposal which includes a "Limited Confidence" rating is not eligible for award if award is made on initial offers. Vendors that receive a "Limited Confidence" rating are considered to be susceptible to correction if the Contracting Officer determines that an exchange is appropriate and said exchange is conducted. Vendors receiving a rating of "No Confidence" for the past performance factor will not be considered for an award and will not be further evaluated. Vendors rated as "Neutral Confidence", while not be evaluated favorably or unfavorably on past performance, may not represent the most advantageous proposal to the Government as "Satisfactory Confidence, or higher, past performance rating may be determined to offer better value.

1. Price Proposal Evaluation Criteria

Factor III: Price

Price proposals will be evaluated based on price reasonableness in accordance with FAR 15.404-1(b), Price Analysis. The Government may evaluate any and all information submitted by the vendor to support the reasonableness of the prices proposed. The method of evaluation used by the contracting officer is solely within the discretion of the contracting officer.

Option FAR 52.217-8, will be evaluated pursuant to solicitation provision FAR 52.217-5, Evaluation of Options. The Government will evaluate offers for award purposes by adding the total price for the option to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

Although price is not the most important evaluation factor, it has the potential to become more significant during the evaluation process. The degree of importance of price will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based. The importance of price will also increase when a proposal's price is so significantly high as to diminish the value to the Government that might be gained under the other aspects of the proposal. If, at any stage of the evaluation, all vendors are determined to have submitted equal, or virtually equal, non-price proposals, price could become the factor in determining which vendor will receive the award.

If the vendor's proposal is determined to be unacceptable in any of the non-price evaluation factors, the price proposal will not be evaluated by the contracting officer. The Government reserves the right to award the contract to other than the lowest priced vendor.

Written Notice

A written notice of award or acceptance of an offer e-mailed or otherwise furnished to the successful vendor within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the proposal's specified expiration time, the Government may accept an offer (or part of a proposal), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

Rating Tables

TABLE 1: TECHNICAL APPROACH - COMBINED TECHNICAL/RISK RATING TABLE

Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

TABLE 2: TECHNICAL APPROACH - RISK DESCRIPTIONS TABLE

Rating	Description
Low	Proposal may contain weakness/weaknesses which have low potential to cause disruption of schedule, increased cost, or degradation of performance. Normal contractor emphasis and normal Government monitoring will likely be able to overcome any difficulties.
Moderate	Proposal contains a significant weakness or combination of weaknesses which may have a moderate potential to cause disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome any difficulties.

High	Proposal contains a significant weakness or combination of weaknesses which is likely to have high potential to cause significant disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will unlikely be able to overcome any difficulties.
Unacceptable	Proposal contains a deficiency or a combination of significant weaknesses that causes an unacceptable level of risk of unsuccessful performance.

DEFINITIONS:

Strength - an aspect of a vendor's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

Significant Strength - an aspect of a vendor's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

Weakness - a flaw in the proposal that increases the risk of unsuccessful contract performance.

Significant Weakness - a flaw that appreciably increases the risk of unsuccessful contract performance.

Deficiency - a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Risk - (as it pertains to source selection) The potential for unsuccessful contract performance. The consideration of risk assesses the degree to which a vendor's proposal approach to achieving the technical factor or sub-factor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

Uncertainty - aspect of a non-cost/price factor proposal for which the intent of the offer is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake).

TABLE 3: PAST PERFORMANCE RELEVANCY TABLE

Rating	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort this solicitation requires.

Relevant	Present/past performance effort involved similar scope and magnitude of effort this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort this solicitation requires.

TABLE 4: PAST PERFORMANCE CONFIDENCE ASSESSMENT TABLE

Rating	Description
Substantial Confidence	Based on the vendor's recent/relevant performance record, the Government has a high expectation that the vendor will successfully perform the required effort.
Satisfactory Confidence	Based on the vendor's recent/relevant performance record, the Government has a reasonable expectation that the vendor will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the vendor's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The vendor may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the vendor's recent/relevant performance record, the Government has a low expectation that the vendor will be successfully perform the required effort.
No Confidence	Based on the vendor's recent/relevant performance record, the Government has no expectation that the vendor will be able to successfully perform the required effort.

Offeror Representations and Certifications - Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-3 **Offeror Representations and Certifications-Commercial Products and Commercial Services.** (Oct 2025)

OFFEROR REPRESENTATIONS AND CERTIFICATIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision-

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended. "Sensitive technology"-

Sensitive technology-

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

- (1)
 - (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
 - (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that-

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(2) *Veteran-owned small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [*Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.*] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.*] [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(5) *Small disadvantaged business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [*Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 11246-

(1) *Previous contracts and compliance.* The offeror represents that-

(i) It ☐ has, ☐ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It ☐ has, ☐ has not filed all required compliance reports.

(2) *Affirmative Action Compliance.* The offeror represents that-

(i) It ☐ has developed and has on file, ☐ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It ☐ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$200,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
==	==	==
==	==	==
==	==	==

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. ==

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR 52.225-3, *Buy American-Free Trade Agreements-Israeli Trade Act*, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

Line Item No.	Country of Origin
==	==
==	==
==	==

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
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==	==	==

==	==	==
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[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. ==

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.
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[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin
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==	==
==	==

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin
==	==
==	==
==	==

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).* [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) *Listed end products.*

Listed End Product	Listed Countries of Origin
_____	_____
_____	_____

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

(i) ☐

(ii) ☐

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

(1) ☐ 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) ☐ 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

class="p">

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

- ☐ Sole proprietorship;
- ☐ Partnership;
- ☐ Corporate entity (not tax-exempt);
- ☐ Corporate entity (tax-exempt);
- ☐ Government entity (Federal, State, or local);
- ☐ Foreign government;
- ☐ International organization per 26 CFR1.6049-4;
- ☐ Other ____.

(5) *Common parent.*

- ☐ Offeror is not owned or controlled by a common parent;
- ☐ Name and TIN of common parent:

Name ____.

TIN ____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that-

- (i) It ☐ is, ☐ is not an inverted domestic corporation; and
- (ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

- (i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and
- (ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: ____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____.

(Do not use a "doing business as" name).

(s) [Reserved].

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals.* Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)].

(i) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported: _____.

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.217-5	Evaluation of Options.	Jul 1990		
52.204-7	System for Award Management.	Nov 2024		
52.237-1	Site Visit.	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems—Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.233-2 Service of Protest. **(Sep 2006)**

Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from

NAVSUP, FLCN
1968 Gilbert St
Norfolk, VA 23511-3331

(b) The copy of any protest shall be received in the office designated above within oneday of filing a protest with the GAO.

(End of provision)

52.219-1 Small Business Program Representations. (Alternate I) **(Feb 2024) Alternate I (Feb 2024)**

Alternate I (FEB 2024). As prescribed in 19.309 (a)(2) add the following paragraph (c)(10) to the basic provision:

(10) [Complete if offeror represented itself as disadvantaged in paragraph (c)(2) of this provision.] The offeror shall check the category in which its ownership falls:

☐ Black American.

☐ Hispanic American.

☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).

☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).

☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).

☐ Individual/concern, other than one of the preceding.

52.204-29 Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures. (Dec 2023)

FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS-REPRESENTATION AND DISCLOSURES (DEC 2023)

(a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(c) *Procedures.*

(1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference.

(Feb 1998)

As prescribed in 52.107(a), insert the following provision:

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of provision)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

As prescribed in 52.107(e), insert the following provision in solicitations that include any FAR or supplemental provision with an authorized deviation. Whenever any FAR or supplemental provision is used with an authorized deviation, the contracting officer shall identify it by the same

number, title, and date assigned to the provision when it is used without deviation, include regulation name for any supplemental provision, except that the contracting officer shall insert "(DEVIATION)" after the date of the provision.

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DFARS (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)